

**PETITION FOR SEALING PURSUANT
TO VA. CODE § 19.2-392.12**

(Misdemeanors, Class 5 or 6 felonies, § 18.2-95, and felony offenses
punished as larceny that resulted in conviction or deferral/dismissal
and any related ancillary matters)

Virginia Beach

Circuit Court

CITY OR COUNTY

Maria-Alejandra O'Shaughnessy-Whitfield

v. Commonwealth of Virginia

NAME OF PETITIONER

I am petitioning to seal criminal history record information and court records, including electronic records, for the charge or conviction included in this petition. This petition is being filed pursuant to Va. Code § 19.2-392.12 as I was convicted of the charge or the charge was deferred and then dismissed. The charge or conviction I am requesting to seal has an offense date on or after January 1, 1986. If indicated below, I am also requesting to seal criminal history record information and court records for ancillary matters related to that charge or conviction.

A. MY INFORMATION

My full name is: Maria-Alejandra O'Shaughnessy-Whitfield

My date of birth is: 1968-12-31 My sex is: My race is:

My social security number is:

B. INFORMATION ABOUT CHARGE OR CONVICTION TO BE SEALED

[] I am requesting to seal a single charge or conviction. (List charge or conviction below).

OR

[] I am requesting to seal more than one charge or conviction. The charges and/or convictions that I am requesting to be sealed all arose out of the same transaction or occurrence and are eligible for sealing in the same petition. (**NOTE:** Ancillary matters are treated as part of the same transaction or occurrence.) List the first charge or conviction below and list additional charges or convictions on the ADDENDUM TO PETITION FOR SEALING PURSUANT TO VA. CODE § 19.2-392.12, FORM CC-1201(A).

1. Specific charge or conviction:

DESCRIPTION OF CHARGE OR CONVICTION

2. This charge is a [] misdemeanor [] class 5 or 6 felony
[] a violation of § 18.2-95 or any other felony offense for which I was
deemed guilty of larceny and was punished as provided in § 18.2-95.

3. Offense Information: (**CHOOSE ONE**)

[] I was convicted of the offense.

OR

[] I had the charge deferred and it was then dismissed.

4. Case number for charge or conviction: CR24001276-01

Date of final disposition or conviction:

Date of arrest:

Name of arresting agency:

Document control number (DCN), if available:

[] Some or all of the above information is not reasonably available because

5. My full name at time of arrest: [] Same as above

6. Court of final disposition:

CITY OR COUNTY

☐ Circuit Court ☐ General District Court ☐ Juvenile & Domestic Relations District Court

7. A copy of the warrant, summons or indictment is

☐ attached.

☐ not reasonably available because

C. INFORMATION ABOUT ANCILLARY MATTER(S) TO BE SEALED

☐ I am NOT requesting to seal an ancillary matter related to the charge or conviction listed on page 1.
(Continue to Section D of this form.)

OR

☐ I am requesting to seal an ancillary matter related to the charge or conviction listed on page 1. List the ancillary matter below. (If you are requesting to seal more than one ancillary matter, list additional ancillary matters on the ADDENDUM TO PETITION FOR SEALING PURSUANT TO VA. CODE § 19.2-392.12, FORM CC-1201(A).)

1. Ancillary Matter

The specific ancillary matter I request to be sealed is **(CHOOSE ONE)**

☐ a violation or alleged violation of the terms and conditions of a suspended sentence, probation or parole;

☐ a violation or alleged violation of contempt of court;

☐ a charge or conviction for failure to appear; **OR**

☐ an appeal from a bail, bond, or recognizance order.

2. Case number for ancillary matter listed above:

Date of final disposition for ancillary matter:

Date of arrest for ancillary matter (if applicable):

Name of arresting agency for ancillary matter (if applicable):

Document control number (DCN), if available (if applicable):

☐ Some or all of the above information is not reasonably available because

3. Full name at time of ancillary matter: ☐ Same as on page 1

4. Court of final disposition for ancillary matter:

CITY OR COUNTY

☐ Circuit Court ☐ General District Court ☐ Juvenile & Domestic Relations District Court

5. A copy of the charging document for the ancillary matter (if applicable) is

☐ attached

☐ not reasonably available because

D. SEALING ELIGIBILITY

1. Criminal History.

a. ☐ I have never been convicted of a Class 1 or 2 felony, or any other felony punishable by life in prison.

b. ☐ I have not been convicted of a Class 3 or 4 felony within the past 20 years.

c. ☐ I have not been convicted of any other felony within the past 10 years.

2. Eligibility Start Date. Check the box that describes your last contact with the court system for the charge(s) or conviction(s) to be sealed. **(CHOOSE A OR B BELOW)**
- a. ☐ The deferred charge against me was dismissed. Date of dismissal:
- OR**
- b. ☐ I was convicted and
- ☐ I was not sentenced to any term of incarceration. Date of conviction:
- OR**
- ☐ I was sentenced to a term of incarceration. Date released from incarceration:
- (If applicable)*
- ☐ After my conviction, I was later found in violation of my suspended sentence, probation, or parole, and
- ☐ I was not sentenced to any term of incarceration.
- OR**
- ☐ I was sentenced to a term of incarceration. Date released from incarceration:
3. Alcohol/Substance Use.
- a. ☐ The charge(s) or conviction(s) to be sealed did not involve the use or dependence on alcohol, any narcotic drug, or any other self-administered intoxicant.
- OR**
- b. ☐ The charge(s) or conviction(s) to be sealed did involve the use or dependence on alcohol, any narcotic drug, or any other self-administered intoxicant, and I have been rehabilitated.
4. Restitution.
- a. ☐ I was not ordered to pay restitution for the charge(s) or conviction(s) to be sealed.
- b. ☐ I was ordered to pay restitution for the charge(s) or conviction(s) to be sealed, and I have paid all restitution in full.
5. Prior Sealing Petitions.
- a. ☐ I have not had a sealing petition previously granted under the petition process in Va. Code § 19.2-392.12.
- b. ☐ I have had a sealing petition previously granted under the petition process in Va. Code § 19.2-392.12. Number of petitions previously granted: ☐ One ☐ Two
-

E. ACKNOWLEDGMENTS.

Check each box to acknowledge that you have read and understand each statement below.

1. ☐ I understand that I am required to provide a copy of this petition by delivery or by first-class mail, postage prepaid, to the Commonwealth's Attorney for the county or city where the petition is filed.
2. ☐ I understand that after this petition is filed, I am required to request that the Central Criminal Records Exchange (CCRE) electronically forward a copy of my Virginia and national criminal history record to the circuit court where the petition is filed. *(Instructions on how to request your criminal history record are available through the Virginia Department of State Police.)*
3. ☐ I understand that my petition may be denied, with or without a hearing, if the charge(s), conviction(s), or ancillary matter(s) listed in this petition are not eligible for sealing.

4. ☐ I understand that if my petition for sealing is granted, it will not restore my civil rights or firearm rights.
5. ☐ I understand that if my petition for sealing is granted, I will still be required to pay any outstanding fines, costs, forfeitures or penalties for charge(s) or conviction(s) that are ordered sealed.

☐ **ADDENDUM.** I am requesting to seal multiple charges, convictions or ancillary matters, and I have attached an ADDENDUM TO PETITION FOR SEALING PURSUANT TO VA. CODE § 19.2-392.12, FORM CC-1201(A)..... addendums are attached to this petition and are incorporated herein.
NUMBER

.....
DATE

SIGNATURE OF ☒ PETITIONER
☐ ATTORNEY FOR PETITIONER (VSB No.)

.....
Maria-Alejandra O'Shaughnessy-Whitfield
PRINTED NAME OF ☒ PETITIONER
☐ ATTORNEY FOR PETITIONER

.....
1188 Upper Notch Crossing Road, Apartment 14B
ADDRESS OF ☒ PETITIONER
☐ ATTORNEY FOR PETITIONER

.....
(757) 555-0199 ext. 4417
TELEPHONE NUMBER OF ☒ PETITIONER
☐ ATTORNEY FOR PETITIONER

.....
Virginia Beach, Virginia 23456-2214
CITY, STATE, ZIP OF ☒ PETITIONER
☐ ATTORNEY FOR PETITIONER

.....
maria.alejandra.oshaughnessy.whitfield@longmailexample.org
EMAIL ADDRESS OF ☒ PETITIONER
☐ ATTORNEY FOR PETITIONER

COPY TO THE ATTORNEY FOR THE COMMONWEALTH, AND REQUEST FOR THE COMMONWEALTH'S POSITION

Petitioner: Maria-Alejandra O'Shaughnessy-Whitfield

Case number of the matter to be sealed: CR24001276-01

Circuit Court: Virginia Beach

Petition: CC-1201 - Petition for Sealing Pursuant to Va. Code Sec. 19.2-392.12

Statutory route: Va. Code Sec. 19.2-392.12

To: the Attorney for the Commonwealth for the county or city named above.

Enclosed is a copy of the petition for sealing filed by Maria-Alejandra O'Shaughnessy-Whitfield in the Virginia Beach Circuit Court. Form CC-1201, Section E, acknowledgment 1 says that the petitioner must provide a copy of the petition, by delivery or by first-class mail with postage prepaid, to the Attorney for the Commonwealth for the county or city where the petition is filed. This is that copy.

The petitioner asks the Attorney for the Commonwealth to state, in writing and to the court, whether the Commonwealth objects to the sealing sought by the enclosed petition. A statement that the Commonwealth does not object is not required for the petition to proceed, and nothing in this request asks the Attorney for the Commonwealth to agree to anything.

The petitioner is not represented by counsel. Correspondence about this petition should go to the address printed on the petition's signature page.

MAILING ADDRESS OF THE ATTORNEY FOR THE COMMONWEALTH

(the petitioner writes it here before mailing)

.....

DATE OF DELIVERY OR MAILING

SIGNATURE OF PETITIONER

This page is not a certificate of mailing and does not say that anything has been mailed. It is completed and signed by the petitioner at the time the copy actually goes out.

Route: obligation:track-pathway:VA:va_seal_petition_felony:petition-based-sealing

REQUEST TO THE CENTRAL CRIMINAL RECORDS EXCHANGE TO FORWARD A CRIMINAL HISTORY RECORD

Petitioner: Maria-Alejandra O'Shaughnessy-Whitfield

Case number of the matter to be sealed: CR24001276-01

Circuit Court: Virginia Beach

Petition: CC-1201 - Petition for Sealing Pursuant to Va. Code Sec. 19.2-392.12

Statutory route: Va. Code Sec. 19.2-392.12

To: the Central Criminal Records Exchange, Virginia Department of State Police.

Form CC-1201, Section E, acknowledgment 2 says that after the petition is filed the petitioner must request that the Central Criminal Records Exchange electronically forward a copy of the petitioner's Virginia and national criminal history record to the circuit court where the petition is filed. This page is that request.

Please forward the Virginia and national criminal history record of Maria-Alejandra O'Shaughnessy-Whitfield to the Virginia Beach Circuit Court, for the sealing petition identified above.

The form on which the Department of State Police accepts this request, the identification it requires, and any charge for it are not stated on this page, because they are not established by the petition itself. The Department of State Police publishes the current procedure; ask the circuit court clerk if you cannot find it.

PETITIONER'S DATE OF BIRTH

(printed on the petition; copy it here so the record can be matched)

DATE OF THIS REQUEST

SIGNATURE OF PETITIONER

File the petition first. This request is made after filing, not before.

Route: obligation:track-pathway:VA:va_seal_petition_felony:petition-based-sealing

RECORDS CHECKLIST FOR THIS PETITION

Petitioner: Maria-Alejandra O'Shaughnessy-Whitfield

Case number of the matter to be sealed: CR24001276-01

Circuit Court: Virginia Beach

Petition: CC-1201 - Petition for Sealing Pursuant to Va. Code Sec. 19.2-392.12

Statutory route: Va. Code Sec. 19.2-392.12

The petition asks for facts that live on your own court and arrest records. Gather these before you fill it in, and keep them together with the packet.

☐ The charge or conviction exactly as it is worded on your court record.

☐ The case number of the matter to be sealed. (The platform has filled this in for you as printed above; check it against your record.)

☐ The date of final disposition or conviction.

☐ The date of arrest, and the name of the agency that arrested you.

☐ The document control number (DCN), if your arrest paperwork shows one.

☐ A copy of the warrant, summons or indictment - the petition asks whether it is attached.

☐ Your sex and race as they appear on the court record, and your Social Security number.

☐ If an ancillary matter is included: its case number, disposition date, arrest date, agency, DCN and charging document.

☐ Your criminal history record from the Central Criminal Records Exchange, forwarded to the court after filing.

If a record cannot be found, the petition has a box for that: it asks you to say why the information is not reasonably available. Say what you tried. Do not guess a date.

Route: obligation:track-pathway:VA:va_seal_petition_felony:petition-based-sealing

FILING INSTRUCTIONS

Petitioner: Maria-Alejandra O'Shaughnessy-Whitfield

Case number of the matter to be sealed: CR24001276-01

Circuit Court: Virginia Beach

Petition: CC-1201 - Petition for Sealing Pursuant to Va. Code Sec. 19.2-392.12

Statutory route: Va. Code Sec. 19.2-392.12

This packet is prepared for sealing a Class 5 or 6 felony, or a felony punished as larceny under Sec. 18.2-95, pursuant to Va. Code Sec. 19.2-392.12.

WHERE THIS GOES

File the petition with the CIRCUIT COURT for Virginia Beach. CC-1201 prints the circuit court's city or county on its own first page, and the platform has filled it in as printed above. If your case was decided in a General District Court or a Juvenile and Domestic Relations District Court, the petition still goes to the CIRCUIT COURT for that city or county, and the petition asks separately which court decided the case.

WHAT YOU DO, IN ORDER

1. Complete every item this packet's participant instructions list. Each one names the page and the words printed beside the blank.
2. Sign and date the petition yourself. The platform never signs for you and never dates a signature, so those lines are deliberately blank.
3. File the petition with the circuit court clerk.
4. Give or mail a copy to the Attorney for the Commonwealth, using the page in this packet headed for that purpose.
5. After filing, ask the Central Criminal Records Exchange to forward your Virginia and national criminal history record to that circuit court, using the page in this packet headed for that purpose.

TWO THINGS THIS PACKET DOES NOT TELL YOU

- The filing fee, and whether it can be waived. Ask the circuit court clerk. No amount is stated here because none is established by the petition, and an unsourced figure in a filing instruction is worse than no figure.
- How long you have, and exactly how service must be made. The petition's own acknowledgment says a copy goes to the Attorney for the Commonwealth by delivery or by first-class mail with postage prepaid; it does not set a deadline, and neither does this page. Ask the clerk.

WHAT THIS PACKET IS NOT

This is a prepared set of official Virginia forms and companion pages. It is not legal advice, it is not filed for you, and it does not decide whether the court will grant sealing.

Route: obligation:track-pathway:VA:va_seal_petition_felony:petition-based-sealing